

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1626

By: George

AS INTRODUCED

An Act relating to motor vehicles; defining terms; authorizing certain use of automatic license plate reader systems; making certain exceptions; requiring certain permit prior to use; authorizing issuance of permits; allowing access for official purposes only; requiring adoption for certain written policy; listing minimum requires for policy; listing certain requirements for use; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 15-133 of Title 47, unless there is created a duplication in numbering, reads as follows:

A. For purposes of this section:

1. "Alert" means a notification generated by an automated license plate recognition system indicating that a vehicle passed an automated license plate recognition system camera with a license plate or vehicle characteristics that match data held by the National Crime Information Center or other database or hot list;

1 2. "Automatic license plate reader system" means a system of
2 one or more law-enforcement-controlled cameras combined with
3 computer algorithms to convert images of registration plates into
4 computer-readable data;

5 3. "Highway right-of-way" means a public road being maintained
6 by the Oklahoma Department of Transportation.

7 4. "Hot list" means a list of license plates or vehicle
8 characteristics against which vehicles passing by automatic license
9 plate recognition system cameras are checked for matches;

10 5. "Law enforcement agency" means any county sheriff, municipal
11 police department, the Oklahoma Highway Patrol, and any state or
12 local public body that employs public safety personnel; and

13 6. "License plate reader data" means the global positioning
14 device coordinates, date and time, photograph, license plate number,
15 and vehicle characteristics captured by an automatic license plate
16 reader system;

17 B. In accordance with applicable state and federal laws
18 governing the use and management of highway rights-of-way and
19 subject to the approval of the Federal Highway Administration as
20 required by federal law, automatic license plate reader systems may
21 be utilized on highway rights-of-way to the extent that such use is
22 consistent with the continued use, operation, maintenance, and
23 safety of the highway facility and does not interfere with the free
24 and safe flow of traffic. Except as provided in Sections 7-606.1

1 and 7-606.2 of this title, such devices shall not be used to enforce
2 state or local traffic violations or issue citations for such
3 violations.

4 C. Prior to installing an automatic license plate reader system
5 camera on a highway right-of-way, a law enforcement agency shall
6 obtain a permit from the Department of Transportation. The
7 Department shall issue a permit to the law enforcement agency that
8 meets standards set by the Department.

9 D. In addition to Sections 7-606.1 and 7-606.2 of this title,
10 operation of and access to an automatic license plate reader system
11 by law enforcement agencies shall be for official law enforcement
12 purposes only.

13 E. Prior to the use of an automatic license plate recognition
14 system, a law enforcement agency shall adopt and make publicly
15 available a written policy governing the use of the automatic
16 license plate recognition system that includes, at a minimum:

17 1. Supervisory oversight of the automatic license plate
18 recognition system;

19 2. Training protocol for automatic license plate recognition
20 system users;

21 3. Protocol for ensuring hot lists stay up to date;

22 4. Rules for access to and security of license plate reader
23 data;

1 5. Rules for retention and destruction of license plate reader
2 data; and

3 6. An audit schedule and process to ensure that the system is
4 used in accordance with this section and agency policy.

5 F. A law enforcement agency using an automatic license plate
6 recognition system shall comply with the following:

7 1. Upon receipt of an alert and prior to performing a traffic
8 stop, an officer, dispatcher, or other law enforcement agency
9 employee shall visually confirm that the scanned plate matches the
10 alert with regard to plate letters, numbers, and issuing state and
11 confirm that the stop meets criteria laid out in the policies of the
12 law enforcement agency and applicable law;

13 2. License plate reader data shall be deleted within thirty
14 (30) days of being recorded in such a manner that the record is
15 destroyed and not recoverable, unless the record is a part of an
16 ongoing investigation, in which case the data shall be retained and
17 destroyed in accordance with applicable records retention laws;

18 3. License plate reader data shall be encrypted in transmission
19 and at rest, utilizing industry-recognized encryption protocols to
20 safeguard against unauthorized access. The data must be stored in a
21 manner that meets or exceeds the requirements set forth by
22 recognized standards such as ISO/IEC 27001, ensuring comprehensive
23 security measures including, but not limited to, physical security,
24 access control, and regular security assessments;

1 4. Any license plate or vehicle added to a hot list in order to
2 trigger an alert and any search performed of license plate reader
3 data shall be supported by a legitimate, specific, and documented
4 law enforcement purpose;

5 5. Access logs for the automatic license plate recognition
6 system shall be maintained to provide a clear audit trail for
7 oversight and accountability purposes;

8 6. A law enforcement agency authorized to use an automatic
9 license plate recognition system under this section shall own the
10 license plate reader data and shall not sell license plate reader
11 data for any purpose; and

12 7. Law enforcement agencies may share license plate reader data
13 with other law enforcement agencies for legitimate law enforcement
14 purposes.

15 SECTION 2. This act shall become effective November 1, 2025.

16

17 60-1-10364 JBH 03/25/26

18

19

20

21

22

23

24